

SENATE BILL 2099

By Akbari

AN ACT to amend Tennessee Code Annotated, Title 16
and Title 40, relative to the Tennessee Court
Appearance Reminder Program Act.

WHEREAS, the General Assembly finds that:

(1) Missed court appearances where a failure to appear warrant may issue impose significant and avoidable costs on the judicial system, law enforcement agencies, local governments, and taxpayers;

(2) Failure to appear warrants frequently result from logistical barriers, confusion, or lack of timely notice rather than willful disregard of court obligations;

(3) Empirical research and demonstrated practice in multiple jurisdictions establish that automated court appearance reminder programs reduce missed court appearances by approximately twenty to forty percent;

(4) Reducing missed court appearances improves judicial efficiency, preserves law enforcement resources, and minimizes unnecessary arrests, jail admissions, and associated economic harm to defendants, families, employers, and communities; and

(5) Establishing a statewide court appearance reminder program constitutes a cost-effective administrative improvement that supports the fair and efficient operation of Tennessee's courts without altering criminal penalties or judicial discretion; and

WHEREAS, the purpose of this act is to establish a uniform, statewide court appearance reminder program, administered by the administrative office of the courts, to reduce failure to appear rates and improve the efficient administration of justice in Tennessee; now, therefore,
BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 40, is amended by adding the following new chapter:

40-21-101. Short title.

This act is known and may be cited as the "Tennessee Court Appearance Reminder Program Act."

40-21-102. Chapter definitions.

For purposes of this act:

(1) "Court reminder program" means an automated system that provides notice of scheduled court appearances by text message, electronic mail, or mail;

(2) "Defendant" means a person alleged to have committed a criminal or traffic offense and who is scheduled for an out-of-custody court appearance for which a failure to appear warrant or sanction may be imposed; and

(3) "Out-of-custody court appearance" means a court appearance for which the defendant is not detained in jail or prison at the time notice is provided.

40-21-103. Establishment of statewide court appearance reminder program.

(a) The administrative office of the courts, under the authority of the supreme court, must develop, implement, and administer a statewide court appearance reminder program for out-of-custody court appearances in criminal and traffic cases for which a failure to appear warrant or sanction may be issued.

(b) The purposes of the program include:

- (1) Reducing the number of missed court appearances;
- (2) Improving the efficiency and effectiveness of courts in this state;
- (3) Reducing the issuance of failure to appear warrants and related arrests and jail admissions; and
- (4) Conserving judicial, law enforcement, and correctional resources.

40-21-104. Program requirements.

The administrative office of the court must administer the reminder program in the following manner:

- (1) At no cost to defendants;
- (2) Automatically enrolling defendants who voluntarily provide a cellular telephone number or electronic mail address, using text message delivery as the default method unless the defendant selects electronic mail;
- (3) Send an initial enrollment notice informing the defendant of:
 - (A) Upcoming reminders;
 - (B) Available language options; and
 - (C) The ability to opt out at any time;
- (4) Provide no fewer than three (3) reminders prior to each scheduled out-of-custody court appearance, including at least one (1) reminder sent on the day before the appearance;
- (5) Use clear, plain language and include:
 - (A) The date, time, and location of the court appearance;
 - (B) The court name or address;
 - (C) The consequences of nonappearance; and
 - (D) Contact information for questions or assistance;
- (6) Include virtual appearance links when applicable;
- (7) Mail court appearance reminders at least fourteen (14) days in advance to defendants who do not provide electronic contact information, including instructions for opting into electronic reminders;

(8) Provide at least one (1) notice within one (1) day after a missed court appearance explaining how to resolve the nonappearance and clear any resulting warrant;

(9) Offer reminders in multiple languages to the extent practicable;

(10) Permit defendants to update contact information and language preferences through publicly accessible means; and

(11) Allow courts with existing reminder systems to continue using such systems if the systems meet the requirements of this chapter.

40-21-105. Data collection and reporting.

(a) The administrative office of the courts must collect and maintain data necessary to evaluate the effectiveness of the court reminder program, including:

(1) Number of eligible court appearances;

(2) Number of defendants enrolled in the program;

(3) Number and type of reminders sent;

(4) Rates of court appearance and nonappearance with and without reminders; and

(5) Number of failure to appear warrants issued.

(b) The administrative office of the courts must use aggregated data collected under this section solely for program evaluation and reporting purposes.

40-21-106. Privacy and use limitations.

(a) A defendant's refusal to provide a telephone number or electronic mail address must not be used against the defendant for any purpose.

(b) Contact information collected under this chapter must be used solely for court notifications, including court appearances, schedule changes, and court closures.

(c) Such information must not be used for:

- (1) Criminal investigations;
- (2) Law enforcement intelligence;
- (3) Bail determinations;
- (4) Evidence in any proceeding; or
- (5) Any purpose unrelated to court notification.

40-21-107. Implementation authority.

The administrative office of the courts may adopt administrative policies and procedures necessary to implement this act and may coordinate with clerks of court, judges, law enforcement agencies, and other relevant entities to ensure effective operation of the program.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. This act takes effect on January 1, 2027, the public welfare requiring it.